

and the other judges had agreed upon that course (c). On a petition by the trustees where the beneficiaries were infants absolutely entitled, it was held that the *infants* need not be served (d). And on a petition by trustees for the opinion of the Court as to the propriety of certain proposed *investments*, it was held that no one need be served (e). And so the Court dispensed with service on any party, where the question submitted to the Court by trustees was, whether they could make an *advancement* to a child out of a share to which the child was presumptively entitled (f).

23. **No appeal, &c.**—As the Act does not give any *right of appeal*, it was not intended to authorise adjudications upon nice questions of law (g). The object of the Act was to procure for trustees at a small expense the assistance of the Court upon points of minor importance arising in the management of the trust. Thus the Court, upon the petition of the trustees of a fund for the separate use of a *married woman, a lunatic* not so found by inquisition, has sanctioned the payment of the annual produce to the husband, he undertaking to apply the same for the benefit of his wife and family (h). So the Court will advise trustees as to *investment* of trust funds, *payment of debts or legacies*, &c. (i); and whether trustees of a remainder can with propriety *concur* with the owner of the particular estate *in the sale* of the fee simple (j); and whether trustees can properly grant a lease upon certain terms (k); exercise a *power of* [\*620] *sale* (l); or a power of maintenance or *\* advancement* under the circumstances stated (a); and whether *calls on shares* in companies should be borne by the testator's

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| (c) <i>Re Green's Trust</i> , 6 Jur. N. S. 530.                                     | <i>Trust</i> , W. N. 1868, p. 233; <i>Re Murray's Trusts</i> , W. N. 1868, p. 195; <i>Re Tuck's Trusts</i> , W. N. 1869, p. 15. |
| (d) <i>Re Tuck's Trusts</i> , W. N. 1865, p. 15.                                    | (j) <i>Earl Poulett v. Hood</i> , 5 L. R. Eq. 116.                                                                              |
| (e) <i>Re French's Trusts</i> , 15 L. R. Eq. 68.                                    | (k) <i>Re Lee's Trusts</i> , W. N. 1875, p. 61.                                                                                 |
| (f) <i>Re Larken's Trust</i> , W. N. 1872, p. 85.                                   | (l) <i>Re Stone's Settlement</i> , W. N. 1874, p. 4.                                                                            |
| (g) <i>Re Mockett's Will</i> , Johns. 628.                                          | (a) <i>Re Kershaw's Trusts</i> , 6 L. R. Eq. 322; <i>Re Breed's Will</i> , 1 Ch. D. 226.                                        |
| (h) <i>Re Spiller</i> , 6 Jur. N. S. 386; [ <i>Re T</i> —15 Ch. D. 78.]             |                                                                                                                                 |
| (i) <i>Re Lorenz's Settlement</i> , 1 Dr. & Sm. 401; <i>Re Knowles's Settlement</i> |                                                                                                                                 |